ORS 181A.250, AS APPLIED

TO	The Oregon Legislature: the Senate Interim Committee on Judiciary; the House Interim Committee on Judiciary; Senator Dick Anderson; Representative Boomer Wright
CC	Governor Tina Kotek; Attorney General Dan Rayfield; Superintendent Casey Codding, Oregon State Police; the Oregon Parks and Recreation Commission
FROM	Robert Samuel White, P.O. Box 334, Reedsport, Oregon 97467
DATE	October 9, 2026
RE	A request that the Legislature examine how a state agency's email about a citizen's letters became a police file, and give ORS 181A.250 a remedy
TESTIMONY	v1.11
AI DISCLOSURE	How this record is made.

To the members of the Legislature,

I ask the Legislature to examine how one email from a state agency about my letters became a threat assessment, a police file, and three officers at my door, with no crime alleged at any point, and to give ORS 181A.250 the means to stop it. Every document cited here is published in full at oprdvolunteerabuse.org.

I am Robert Samuel White. In 2025 I served as an unpaid volunteer park host for the Oregon Parks and Recreation Department at Jessie M. Honeyman Memorial State Park, living on the land I served. On March 24, 2025, OPRD dismissed me, with twenty-four hours to leave.[1] Two days later, its letter permanently excluding me from every OPRD volunteer program gave the reason: “the public comments made about staff regarding your volunteer service.”[2] I was dismissed for what I said. I continued saying it: in an open letter to the Director on August 24, 2025, and in a formal complaint to the Governor on November 18, 2025.[3],[4] One year to the day after the dismissal, the police came to my door.

WHAT THE LAW SAYS

ORS 181A.250: “No law enforcement agency, as defined in ORS 181A.010, may collect or maintain information about the political, religious or social views, associations or activities of any individual, group, association, organization, corporation, business or partnership unless such information directly relates to an investigation of criminal activities, and there are reasonable grounds to suspect the subject of the information is or may be involved in criminal conduct.”

This statute protects First Amendment speech from police files. What they collected and kept was my First Amendment speech: what I said in public, and my petitions to the Director and the Governor. No crime was ever alleged.

The section names no remedy and no one to enforce it.

WHAT ONE EMAIL SET IN MOTION

On March 3, 2026, OPRD Emergency Manager Jamen Lee sent my letters to Captain Kyle Kennedy, OSP Government and Media Relations: “Fyi – sharing for situational awareness since he is now including the Governor as well as our Director.” The email alleged no crime and quoted no threat. On March 4, 2026, the dispatch record was entered: “Capt. Kennedy is requesting that a threat assessment be conducted asap.”[5]

On March 6, Lieutenant Haley McQuillan routed it to Detective Jake Hyde, a Task Force Officer with the Portland FBI Joint Terrorism Task Force. Before noon, Hyde wrote FBI personnel from his FBI account: “Name is Robert Samuel White out of Florence Oregon. But I don’t have a DOB.” That afternoon, Lee sent Hyde my dismissal letter and OPRD’s Timeline of Events. The program manager who expelled me wrote it over ten months. It quotes fragments of my emails and texts out of their context and attaches her own descriptions to them. I was never shown it and had no way to answer it.[6][5]

On March 11, Dianne Greenlee, Criminal Intelligence Analyst at the Department of Justice’s Oregon TITAN Fusion Center, wrote: “I’m documenting this activity for our internal awareness since Mr. White’s actions border on harassment due to the volume of emails that he has forwarded to OPRD staff over the last year.” Hyde answered: “Yes, that is correct. Just OSP it is not an FBI case.” On March 13, Hyde sent Detective Jerred Nelson my driver’s record and a report, from his FBI account.[5]

On March 22, [USFS Special Agent] delivered two screenshots from the onX Hunt hunting application with a waypoint pinned on the work center where I live, and the note that my Forest Service supervisor “was told not to advise WHITE that FS LE was inquiring about his whereabouts.” On March 23, Nelson opened a dispatch event naming me “Suspect,” with the basis: sending “concerning emails to former supervisors in parks department and publicly airing grievances.”[5]

On March 24, 2026, one year to the day after my dismissal, Nelson, Hyde, and came through a locked federal gate to the work center where I live and work. Nelson told me I “was not in trouble,” the day after he named me “Suspect.” On April 2, I served Oregon State Police a preservation notice and a request for every record of the visit.[7] On April 15, 2026, thirteen days later, Nelson closed the assessment: “there is no evidence White has committed any crimes.” The file remains: “Case and assessment to be documented for information only at this time.”[5]

WHAT HAS HAPPENED SINCE

After March 24, I had to repair my relationships with the Forest Service, where I live and work. On April 3, I wrote to the District Ranger and asked not to be displaced again.[8] On July 24, she wrote that the Forest Service “did not initiate the interview,” and: “Employees in the Reedsport Office have shared positive feedback regarding your work as a volunteer, and I am pleased to hear that.”[9] The Forest Service referred my complaint about [USFS Special Agent] to its Office of Professional Responsibility.[10]

From the state, there has been silence. I wrote to Jamen Lee about his March 3 email, and he has not answered.[11] I wrote twice to Dianne Greenlee about what she documented, and she has not answered.[12][13] I wrote to Captain Kennedy twice, and quoted ORS 181A.250 in full to ten Oregon State Police addresses. No one who took part has answered.[14][15][16] Since March 24, OPRD has written to me only about records requests and fees. What I know about what was done to me, I learned from records I had to request, petition for, and pay for. No one who took part has acknowledged any of it.

WHAT I ASK THE LEGISLATURE TO CLOSE

1. **ORS 181A.250 has no remedy.** A person has no way to learn that a file exists, no right to have it removed when the statute’s condition is not met, and no one charged with enforcing it. I ask the Legislature to give the statute all three.
2. **A state agency can send a citizen’s name to the police without alleging a crime.** Lee’s email named no crime and quoted no threat. I ask the Legislature to require that when a state agency refers a member of the public to law enforcement without alleging a crime, the referral state its basis in writing, be approved by an accountable official, and be disclosed to the person within a set time.

3. **A threat assessment can be opened on correspondence alone.** Kennedy's request followed an email about my letters to the Governor and the Director. I ask the Legislature to require a stated threat before any law enforcement agency opens a threat assessment on a member of the public.
4. **A file can remain after it finds no crime.** Nelson wrote "there is no evidence White has committed any crimes," and the file remains "for information only." I ask the Legislature to require that such a file be destroyed or sealed, and the person notified.
5. **A state officer serving on a federal task force can use federal systems in a state matter.** Hyde wrote from his FBI account to FBI personnel, then wrote: "Just OSP it is not an FBI case." I ask the Legislature to set rules for state officers assigned to federal task forces when they act in state matters.

I ask the committees of the Legislature to take these up in the 2027 session.

Respectfully,

Robert Samuel White

Sources

1. OPRD dismissal, March 24, 2025.
2. OPRD exclusion letter, March 26, 2025.
3. An Open Letter, August 24, 2025.
4. Formal complaint to the Governor, November 18, 2025.
5. Oregon State Police production, PR27478, September 3, 2026.
6. Sunlight: the Timeline of Events against the record.
7. Public records request and preservation notice to Oregon State Police, April 2, 2026.
8. Something I Built Here, to the District Ranger, April 3, 2026.
9. The District Ranger, Forest Service, July 24, 2026.
10. Patrol Captain, Forest Service: referral to the Office of Professional Responsibility, September 9, 2026.
11. Your March 3, 2026 email to Captain Kennedy, September 5, 2026.
12. Request for records concerning the March 11 characterization, September 20, 2026.
13. A response is expected, September 22, 2026.
14. You converted a link into a threat assessment, September 27, 2026.
15. ORS 181A.250, and the file you hold on me, September 27, 2026.
16. A statement about record keeping, October 8, 2026.